

		While defendant Vasquez is not a signatory on the agreement, she argues the agreement, by its terms, extends to employees of Urth Caffé, of which she is one. (Boucher v. Alliance Title (2005) 127 Cal.App.4th 262, 271 [“a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.”].)
105	Guinoo v. Crisostomo 2021-01224958	A Notice of Stay due to bankruptcy of Defendant Bryan Crisostomo was filed with the court. This is the second time Defendant Bryan Crisostomo has filed a notice of stay due to bankruptcy proceedings. The motion to enforce settlement Agreement and appoint a partition referee will be continued, as required by law. Counsel and any unrepresented parties shall appear at the scheduled hearing time to discuss a continued date for the hearing on these motions.
106	Jarvis Restoration v. Mercury Insurance Services 2026-01546848	DEMURRER TO SECOND CAUSE OF ACTION – OVERRULED MOTION TO STRIKE PUNITIVE DAMAGES CLAIM – GRANTED Defendant Mercury Insurance Services (“Defendant”) filed a demurrer and motion to strike. In the demurrer, Defendant demurs to the second cause of action for bad faith. In the motion to strike, Defendant moves to strike Plaintiff’s claim for punitive damages. Plaintiff Jarvis Restoration, LLC (“Plaintiff”) opposed both motions. <u>DEMURRER</u> As stated in Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 345, as modified on denial of reh’g (July 30, 2001): “[B]efore an insurer can be found to have acted tortiously (i.e., in bad faith), for its delay or denial in the payment of policy benefits, it must be shown that the insurer acted unreasonably or without proper cause.” (Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347.) “It is now settled law in California that an insurer denying or delaying the payment of policy benefits due

to the existence of a genuine dispute with its insured as to the existence of coverage liability or the amount of the insured's coverage claim is not liable in bad faith even though it might be liable for breach of contract."

(Chateau Chamberay Homeowners Ass'n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347, as modified on denial of reh'g (July 30, 2001).)

"[A] court can conclude as a matter of law that an insurer's denial of a claim is not unreasonable, so long as there existed a genuine issue as to the insurer's liability. [Citation.] The 'genuine dispute' doctrine may be applied where the insurer denies a claim based on the opinions of experts." (Chateau Chamberay Homeowners Ass'n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347, as modified on denial of reh'g (July 30, 2001).)

"While many, if not most, of the cases finding a genuine dispute over an insurer's coverage liability have involved legal rather than factual disputes, we see no reason why the genuine dispute doctrine should be limited to legal issues. [Citations.] That does not mean, however, that the genuine dispute doctrine may properly be applied in every case involving purely a factual dispute between an insurer and its insured. This is an issue which should be decided on a case-by-case basis. [¶] . . . [W]here an insurer, for example, is relying on the advice and opinions of independent experts, then a basis may exist for invoking the doctrine and summarily adjudicating a bad faith claim in the insurer's favor. [Citations.] [But] an expert's testimony will not automatically insulate an insurer from a bad faith claim based on a biased investigation." (Chateau Chamberay Homeowners Ass'n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 348.)

Here, the Court finds that the allegations in the Complaint sufficiently state a cause of action for bad faith at this stage of the litigation. In particular, the Court finds the allegations in paragraphs 48-51 establish the requisite unreasonableness and improper cause in denying the insurance claims at issue in the Complaint.

		<u>MOTION TO STRIKE</u> Defendant moves to strike Plaintiff's claim for punitive damages. Defendant argues Plaintiff has not alleged the requisite "deliberate, wanton, malicious, wreckful, or willful acts of Defendant" to establish that Plaintiff is entitled to punitive damages. Plaintiff argues that it is not required to prove its punitive damages claim in the complaint and is only required "to allege the ultimate facts upon which that claim rests," which have been alleged. Plaintiff points to paragraphs 16–21, 48, 50 of the Complaint. The Court agrees with Defendant. The Complaint does not state sufficient facts to support a claim for punitive damages against a corporate defendant. (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167-168.) The Motion to Strike is GRANTED WITH LEAVE TO AMEND. Defendant to give notice.
107	Jban, LLC v. Carrows California Family Restaurants, LLC, 2024-01371072	Plaintiff Jban, LLC's unopposed Motion for Leave to file a First Amended Complaint is granted pursuant to Code of Civil Procedure §473 and Cal. Rules of Court, Rule 3.1324. The proposed First Amended Complaint should be separately filed and served pursuant to code. Plaintiff to give notice.
108	Leaf Capital Funding v. Strada Collision Centers, 2025-01534127	Plaintiff Leaf Capital Funding, LLC moves for writs of possession against defendants Strada Collision Centers, Inc. and Hamid Hojati for the subject equipment, a 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW. The Court notes that a Default Judgment was entered in plaintiff's favor on April 8, 2026, wherein the Court found that plaintiff shall obtain possession of the 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW, Serial Number 632201. As a writ of possession is a prejudgment remedy and judgment has now been entered against defendants, the applications are DENIED as MOOT. (See Sea Rail Truckloads, Inc. v. Pullman, Inc. (1982) 131 Cal.App.3d 511, 514 ["California's Claim and Delivery law [citations] authorizes the issuance of a pre-judgment writ of